

COMMERCIAL SUBCONTRACTOR & VENDOR MASTER AGREEMENT

CONFIDENTIAL & PROPRIETARY LEGAL INSTRUMENT

RECITALS. CONTRACTOR-SUBCONTRACTOR ENGAGEMENT

This Commercial Vendor and Subcontractor Master Agreement ("Vendor Agreement") is executed on March 1, 2026, by Prime Engineering Solutions LLC ("Prime") and Delta Systems Integration Inc. ("Subcontractor").

Prime provides mission-critical enterprise integration services to federal and commercial clients. Prime desires to subcontract specific engineering work packages to Subcontractor pursuant to issued Task Orders.

SECTION 1. SERVICES AND DELIVERABLE ACCEPTANCE

1.1 Performance Standards: Subcontractor warrants that all deliverables and custom code shall be executed in accordance with highest professional industry standards and shall satisfy the technical milestones in each Task Order.

1.2 Acceptance Period: Prime shall have twenty (20) business days following receipt of deliverables to test and provide written notice of acceptance or rejection specifying non-conformities.

SECTION 2. COMPENSATION AND INVOICING

2.1 Payment Schedule: Subcontractor shall submit monthly time-and-materials invoices detailing engineer hours, approved expenses, and deliverable milestones. Prime shall pay approved invoices net forty-five (45) days from receipt.

SECTION 3. WORK PRODUCT AND INTELLECTUAL PROPERTY

3.1 Work Made for Hire: All inventions, algorithms, software routines, and documentation developed by Subcontractor under this Vendor Agreement shall constitute "work made for hire" and shall belong solely and exclusively to Prime.

SECTION 4. CONFIDENTIALITY AND NON-DISCLOSURE

4.1 Non-Disclosure: Subcontractor shall protect all Prime proprietary technical architectures and client information with strict confidentiality for a minimum of five (5) years post-termination.

SECTION 5. TERMINATION PROVISIONS

5.1 Termination for Cause: Prime may terminate this Vendor Agreement immediately without prior notice upon: (a) Subcontractor's material breach of confidentiality; (b) fraud or willful misconduct; or (c) assignment or subcontracting of duties without Prime's written consent.

5.2 Termination for Convenience: Prime may terminate any Task Order or this entire Vendor Agreement for convenience at any time upon providing fourteen (14) days prior written notice to Subcontractor.

5.3 Payment on Termination for Convenience: If Prime terminates for convenience, Prime shall pay Subcontractor for all verified billable hours completed up to the effective termination date.

SECTION 6. INDEMNITY AND PROFESSIONAL INSURANCE

6.1 Insurance Minimums: Subcontractor shall maintain Commercial General Liability insurance of not less than \$2,000,000 per occurrence, and Cyber/Errors & Omissions insurance of not less than \$3,000,000.

6.2 Subcontractor Indemnity: Subcontractor shall defend and indemnify Prime against any claims arising out of Subcontractor's gross negligence, intellectual property infringement, or tax non-compliance.

SECTION 7. GOVERNING LAW AND ARBITRATION

7.1 Texas Law: This Vendor Agreement is governed by the laws of the State of Texas. Any unresolved disputes shall be submitted to binding arbitration in Dallas, Texas under AAA Commercial Arbitration Rules.